

Comment on the Notice of Proposed Rulemaking: Disclosure of Information (Aggregated Analyses, Questions 20 Through 23)

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Introduction and summary

Tokenization Systems is an independent research program studying the operational control layer of financial systems: the functions through which an institution actually exercises control, and whether a supervisor or an outside analyst can verify that control from observable data rather than take it on representation. The program's prior comments to the FDIC addressed the prudential activities rule (RIN 3064-AG19), the application-process rule (RIN 3064-AG20), the Bank Secrecy Act and sanctions compliance rule (RIN 3064-AG29), and the companion Resolution Submissions (RIN 3064-AG21) and Assessments (RIN 3064-AG27) proposals issued with this one on June 30, 2026.

This comment is confined to one element of the proposal: Section II.C.7.d, "Disclosure of Data for Aggregated Analyses," and Questions 20 through 23 (91 Fed. Reg. at 39734). There the FDIC recognizes that there may be value in third parties receiving confidential information on an aggregated basis from multiple insured depository institutions "in order to provide transparency with respect to, and facilitate analysis of, the supervisory process, without requiring preapproval from the FDIC." The program supports that objective. Today, supervisory material of this kind reaches the public by exception. When the Board of Governors of the Federal Reserve System released a wide range of supervisory material after the failure of Silicon Valley Bank, it explained: "Due to the exceptional nature of these events, including the failure of SVB, the Board has determined that releasing this information is in the best interest of the public." A standing, safeguarded channel would let the supervisory process be examined before a failure rather than after one.

The proposal does not yet contain that channel. It appears only in the preamble: the proposed regulatory text of revised Part 309 contains no provision for aggregated analyses, and its only references to aggregation concern the aggregation of Freedom of Information Act requests and fees. The FDIC therefore asks, in Questions 20 through 23, whether and how to build it. The program's answer is to adopt it, to codify it with its safeguards, and to design it so that institution-level confidential information does not leave a controlled

environment.

The recommendations are:

Recommendation	FDIC question	Requested final-rule action	Why it matters
1. Codify the aggregated-analysis channel and open it to independent researchers	Question 20; Section II.C.7.d	Adopt the channel as a new paragraph (f) of proposed Sec. 309.37 that states its purpose, and make independent research organizations eligible alongside the law firms and trade associations the preamble names	The channel appears only in the preamble, so its purpose and safeguards bind no one yet; and analysis of the supervisory process should not rest solely on organizations that represent the supervised
2. Keep institution-level data in a controlled environment and release only reviewed aggregates	Questions 20, 21, and 22	Require that institution-level confidential information stay within a controlled environment and that only aggregate outputs passing review leave it	Addresses re-identification (Question 22) and the competitor-information concern in Question 20 by design, because no recipient receives another institution's data
3. Protect the largest institutions against re-identification, not only small cells	Question 22	Require that every released statistic rest on a minimum number of institutions and that no single institution account for more than a set share of it	Disclosure risk in business data concentrates in the largest units, which a count threshold alone does not protect
4. Require public disclosures to be reproducible from a stated method	Question 23	Require any public disclosure based on the channel to state its method and parameters in enough detail for the FDIC to recompute it	A statistic computed from the same data can move by a large factor on one unstated choice; reproducibility is the proportionate answer to the inaccuracy risk Question 23 names

A note on scope and evidence. Recommendation 4 draws on the program's published first-party work, which examines governance tokens, not insured depository institutions; it transfers to this rulemaking as method, not as evidence about any institution the FDIC supervises. Recommendations 2 and 3 draw on the statistical disclosure control literature and on the federal statistical system's own practice, both of which concern business and survey data generally. The one bank-specific source is the Federal Reserve's own review of its supervision of Silicon Valley Bank.

Recommendations

Recommendation 1 (Question 20; Section II.C.7.d): Codify the aggregated-analysis channel in the regulatory text, and make independent research organizations eligible

The FDIC asks in Question 20 “[t]o what extent” it should permit this sharing and “[t]o what type(s) of entities” it should allow access. The program recommends that the FDIC adopt the channel as a new paragraph (f) of proposed Sec. 309.37, which in the proposed text runs through paragraph (e), rather than leave it to the preamble or to case-by-case practice. A provision in the rule would state the channel’s purpose, its eligibility criteria, and its safeguards in one place that every institution and recipient can read, and would let the FDIC apply them uniformly. Safeguards that exist only in a preamble, or only in individual arrangements, would not.

On eligibility, the preamble offers as examples “law firms or nonpartisan nonprofit banking trade associations.” Both have legitimate roles. But a banking trade association represents the institutions whose supervision would be analyzed, and a law firm represents its clients. The purpose the FDIC states is transparency and analysis of the supervisory process, and that analysis is most credible when at least some of it is performed by parties independent of the supervised. The program recommends that eligibility extend to independent research organizations, including academic institutions and nonprofit research organizations, on the same conditions as any other recipient.

The Office of the Comptroller of the Currency has proposed that breadth for its own channel. Its parallel proposal, whose comment period also closes today, would let a supervised entity disclose confidential supervisory information to a not-for-profit entity so that it can “aggregate the anonymized CSI of entities supervised by the OCC, Board, or FDIC” and make the aggregated information public, and its preamble gives as an example “a not-for-profit university or think-tank that uses anonymized, aggregated data to identify, evaluate, and publish research about emerging risks associated with novel technologies” (91 Fed. Reg. 50610, 50622 (Aug. 5, 2026)). Because that design contemplates aggregation across entities supervised by the OCC, the Board, and the FDIC, consistent eligibility criteria and safeguards across the agencies would let one research design operate under each agency’s rule.

Recommendation 2 (Questions 20, 21, and 22): Keep institution-level confidential information within a controlled environment, and release only aggregate outputs that pass review

The preamble contemplates institutions sharing confidential information directly with an aggregating organization (Question 21 asks about permitting “FDIC-supervised institutions to share confidential information with organizations for these purposes”). The program recommends a design that achieves the same analytical purpose without that transfer. Institution-level confidential information would remain within a controlled environment; an approved recipient would run its analysis there; and only aggregate outputs that pass review would leave. In its simplest form, FDIC staff would run approved

analyses and release the results. If the FDIC instead keeps the preamble’s model of direct sharing with an aggregator, the same conditions should apply to the aggregator: institution-level information kept segregated, never returned to member institutions, and released only as reviewed aggregates.

The statistical disclosure control (SDC) literature reaches this design for data of this shape. Matthias Templ, in *Statistical Disclosure Control for Microdata* (Springer, 2017), explains that disclosure risk for business data differs from that for socio-economic data, because “large enterprises are often selected with probability one” and “the risk of disclosure is generally high for those enterprises” (p. 282). He concludes: “Remote access solutions may thus be the preferred solution for such data sets because the anonymized data will most likely have low data utility when using traditional SDC methods” (p. 282). Supervisory data about insured depository institutions has that shape wherever a small number of large institutions account for much of a category.

Both forms of this design are standard release types in that literature. In a controlled research data center, “[t]he final output is checked by the staff of the data provider (usually experts in statistical disclosure control) and only output with very low risk of disclosure is finally given to the user” (p. 46). In remote execution, the form closest to FDIC staff running approved analyses, researchers submit their code and “the data provider executes the code on the original files, checks the output and sends the output that does not disclose information back to the researchers” (p. 47).

The risk is not hypothetical. Even in its exceptional release, the Federal Reserve noted that “[s]urveillance reports may contain confidential supervisory information related to other institutions that are continuing to operate” (Review of the Federal Reserve’s Supervision and Regulation of Silicon Valley Bank, p. 67 n.99). Supervisory material about one institution routinely carries information about others.

This design also answers the rest of Question 20, which asks what safeguards would help ensure that “such information sharing would not raise antitrust or other concerns”. Because no recipient receives another institution’s data, the channel does not become a conduit for competitor-level information. And it answers the second part of Question 21, whether limits should vary with the type of entity receiving the information: when protection comes from the environment and from review of outputs rather than from trust in the recipient, the same rules can apply to every recipient. The information made available within the environment should be limited to what an approved analysis requires.

Recommendation 3 (Question 22): Protect the largest institutions against re-identification, not only small cells

Question 22 asks whether the FDIC should “take any steps to mitigate the risk that the identity of a specific institution that is the subject of the information can be reverse engineered, and if so how?” The program recommends two rules for every released statistic, with parameters for the FDIC to set: a minimum number of contributing institutions, and a limit on the share of the statistic that any single institution may account for. A minimum count alone protects small cells but not the largest institutions. Where one

institution accounts for most of a category, an aggregate over many institutions still largely describes that one, which is the pattern Templ identifies for large enterprises. Review of outputs should also consider combinations of releases, since two aggregates that differ by one institution can be subtracted to isolate it.

These are the federal statistical system’s own rules for business data, so the FDIC would be adopting established practice rather than designing new controls. The Federal Committee on Statistical Methodology explains that for tables of magnitude data, disclosure limitation “concentrates on making sure that the published data cannot be used to estimate within too close of a range the values reported by the largest, most highly visible respondent,” and that the rules most commonly used to identify sensitive cells “by government agencies are the (n) threshold rule, (n, k) rule, and the p-percent or pq rules.” It also describes complementary suppression, which withholds further cells “so that the sensitive cells cannot be derived by addition or subtraction from published marginal totals” (Statistical Policy Working Paper 22, rev. 2005, p. 22). Those rules are a ready starting point for the parameters the FDIC would set.

Recommendation 4 (Question 23): Require any public disclosure based on the channel to be reproducible from a stated method

Question 23 asks “[w]hat, if any, risks may be posed by inaccuracies in such public disclosures, and what, if any, requirements should the FDIC consider to mitigate such risks?” The program’s own published work shows how large such inaccuracies can be. In a study of 52 token protocols published in *Frontiers in Blockchain* in August 2026, the program found that concentration figures in prior holder-list studies were inflated by a median factor of 2.3, and by approximately 18 at the maximum, because those studies counted as independent holders addresses controlled by the protocols themselves. That work concerns governance tokens, not insured depository institutions, and it is offered here as method: a statistic computed from the same underlying data can move by a large factor on one methodological choice that a reader cannot see.

The proportionate safeguard is reproducibility. The program recommends that any public disclosure based on the channel state its method and parameters in enough detail for the FDIC to recompute the published figures, and that the recipient correct any figure the FDIC cannot reproduce. This checks computation, not conclusions. It does not require the FDIC to approve what a recipient says, which would reintroduce the preapproval the proposal removes.

Suggested rule text

Offered as a drafting starting point, with bracketed parameters for the FDIC to set.

New paragraph (f) of proposed Sec. 309.37, Disclosure for aggregated analyses.

- (1) *Purpose.* The FDIC may permit disclosure of confidential information for the purpose of producing aggregated analyses that provide transparency with respect to, and facilitate analysis of, the supervisory process.

- (2) *Eligible recipients.* An eligible recipient is a law firm, a nonpartisan nonprofit banking trade association, an academic institution, or a nonprofit research organization that agrees in writing to the conditions of this paragraph.
- (3) *Controlled environment.* Institution-level confidential information disclosed under this paragraph shall remain within an environment controlled by the FDIC, or by the recipient under conditions the FDIC approves, and shall not be transferred outside it or returned to any other institution. Only aggregate outputs that satisfy paragraph (f)(4) may leave the environment.
- (4) *Output rules.* No aggregate output may be released unless it is derived from at least [number] institutions, no single institution accounts for more than [percentage] of the value underlying it, and it cannot be combined with another released output to identify a specific institution.
- (5) *Reproducibility.* A recipient that publicly discloses information derived under this paragraph shall state its method and parameters in sufficient detail for the FDIC to reproduce the disclosed figures, and shall correct any figure the FDIC cannot reproduce.

Anticipated objections

Objection: a controlled environment is costly for the FDIC. Although the costs of a full research data center “might be high because of the staff and facilities needed” (Templ, p. 46), the simplest form requires no new facility: FDIC staff run approved analyses and release only results that pass review, the arrangement the literature calls remote execution (p. 47). The FDIC can begin there and extend access as demand warrants.

Objection: opening eligibility to researchers increases confidentiality risk. Under Recommendation 2, protection comes from the environment and from review of outputs, not from the identity of the recipient. The same rules apply to every recipient, whether a trade association or a university.

Objection: the program would benefit from access. It could. Tokenization Systems is a research organization of the kind Recommendation 1 would make eligible. The recommendation defines eligibility by criteria that any independent research organization can meet and conditions it on the same safeguards as every other recipient; it does not seek access for any named party.

Objection: reproducibility would let the FDIC control research conclusions. Reproducibility checks that a stated method yields the stated numbers. It does not give the FDIC a veto over interpretation, and it asks less of a recipient than preapproval would.

Conclusion

The FDIC has identified a real opportunity: to let the supervisory process be analyzed routinely, rather than only in the aftermath of a failure. The program recommends that the FDIC take it, and that it build the channel into the rule itself, open it to independent

researchers, keep institution-level information inside a controlled environment, protect the largest institutions against re-identification, and require that published results be reproducible. Designed this way, the channel would add transparency to the supervisory process without making any institution’s confidential information less secure.

Respectfully submitted,

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Appendix: Selected Sources

The proposed rule.

- Federal Deposit Insurance Corporation, Disclosure of Information, Notice of Proposed Rulemaking, 12 CFR Parts 303, 306, 309, 327, and 337, RIN 3064-AG30, 91 Fed. Reg. 39726 (June 30, 2026). Section II.C.7.d and Questions 20 through 23, p. 39734. Proposed Sec. 309.37, paragraphs (a) through (e).
- Federal Deposit Insurance Corporation, Disclosure of Information; Extension of Comment Period, RIN 3064-AG30, 91 Fed. Reg. 55501 (August 28, 2026). Comment period extended to October 5, 2026.

The parallel OCC proposal.

- Office of the Comptroller of the Currency, OCC Rules Regarding the Availability of OCC Information, Notice of Proposed Rulemaking, Docket ID OCC-2026-0133, RIN 1557-AF50, 91 Fed. Reg. 50610 (Aug. 5, 2026), proposed Sec. 4.14(b)(1)(vi) and preamble pp. 50621 to 50622 (not-for-profit aggregation of anonymized supervisory information).

Official-sector precedent.

- Board of Governors of the Federal Reserve System, Review of the Federal Reserve’s Supervision and Regulation of Silicon Valley Bank (April 28, 2023). Page vii (release of supervisory material “in the best interest of the public” due to “the exceptional nature of these events”); page 67, note 99 (surveillance reports and other institutions).

Statistical disclosure control.

- Matthias Templ, Statistical Disclosure Control for Microdata: Methods and Applications in R (Springer, 2017), doi 10.1007/978-3-319-50272-4. Pages 46 and 47 (research data centers; remote execution; review of outputs) and 282 (business data; large enterprises; remote access).

- Federal Committee on Statistical Methodology, Report on Statistical Disclosure Limitation Methodology, Statistical Policy Working Paper 22 (second version, December 2005), p. 22 (magnitude data; the threshold, (n, k), and p-percent rules; complementary suppression).

The program’s published first-party work (scope-qualified: governance tokens, not insured depository institutions; method only).

- Zach Zukowski, Auditing governance concentration beyond token allocation: a live-governance study of 52 token protocols, *Frontiers in Blockchain* 9:1853465 (2026), doi 10.3389/fbloc.2026.1853465. Abstract (inflation of prior holder-list concentration figures by a median factor of 2.3, maximum approximately 18).

The program’s prior FDIC comments, referenced and not restated.

- RIN 3064-AG19 (prudential activities rule); RIN 3064-AG20 (application-process rule); RIN 3064-AG29 (Bank Secrecy Act and sanctions compliance rule); RIN 3064-AG21 (Resolution Submissions); RIN 3064-AG27 (Assessments).